Archived: Monday, July 27, 2026 1:19:27 PM
From: Babkiewicz, Joseph
Sent: Tuesday, September 16, 2025 8:59:41 AM
To: Clarkson, Constance; Roth, Felicia; Taylor Ellison
Cc: Jones, Kim; Rooney, Pat; Fazekas, Ryan; DuBose, Amanda
Subject: RE: Legal Spreadsheet - Flock Addition Request
Sensitivity: Normal

Good morning Taylor,

I went to approve the locations for the Phase 2 Flock cameras. However, there were two on May River Road that may be a problem. It appears that Dominion Energy does not have third party permission to put cameras on their poles, and we would have to get permission from SCDOT (which we know will not happen at this time). I will not approve the two on May River unless they are powered by solar, not attached to a pole, and off SCDOT property. If that is the case, we will have to find different locations for these two cameras.

Chief Joe Babkiewicz

From: Clarkson, Constance <cclarkson@townofbluffton.com>
Sent: Thursday, September 11, 2025 8:51 AM
To: Roth, Felicia <froth@townofbluffton.com>; Babkiewicz, Joseph <jbabkiewicz@townofbluffton.com>
Cc: Jones, Kim <kjones@townofbluffton.com>; Rooney, Pat <prooney@townofbluffton.com>; Fazekas, Ryan <rfazekas@townofbluffton.com>; DuBose, Amanda <adubose@townofbluffton.com>
Subject: RE: Legal Spreadsheet - Flock Addition Request

Felicia, thanks so much for the quick response.

Chief, I'll wait to get the list from Flock for Phases 2 and 3 where they plan to attach to a Dominion pole in the SCDOT ROW. I'll then reach out to SCDOT to discuss their approval for all the locations before submitting the Pole Attachment applications because each pole request requires a separate application.

Please let me know if you have any questions in the meantime.

Constance S. Clarkson, CEPSCI
Project Manager
Projects & Watershed Resilience
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From: Roth, Felicia <froth@townofbluffton.com>
Sent: Thursday, September 11, 2025 8:38 AM
To: Clarkson, Constance <cclarkson@townofbluffton.com>
Cc: Jones, Kim <kjones@townofbluffton.com>; Rooney, Pat <prooney@townofbluffton.com>; Babkiewicz, Joseph <jbabkiewicz@townofbluffton.com>; Fazekas, Ryan <rfazekas@townofbluffton.com>; DuBose, Amanda <adubose@townofbluffton.com>
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I'll put it on the list but my opinion is that if the easement that Dominion obtained does not say that the property owner also grants permission for third parties to access and use Dominion's easement, then Dominion cannot give us such authorization. We may be able to use their poles but they cannot speak for land owners.

Since the next legal meeting is not until 9/23, what I'd recommend is that we bundle all of the desired mount locations within the SCDOT ROW and make one request for access in writing and see what SCDOT says.

Felicia L. Roth, J.D.
Director of Compliance and Contracts

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From: Clarkson, Constance <cclarkson@townofbluffton.com>
Sent: Wednesday, September 10, 2025 6:32 PM
To: Roth, Felicia <froth@townofbluffton.com>
Cc: Jones, Kim <kjones@townofbluffton.com>; Rooney, Pat <prooney@townofbluffton.com>; Babkiewicz, Joseph <jbabkiewicz@townofbluffton.com>; Fazekas, Ryan <rfazekas@townofbluffton.com>; DuBose, Amanda <adubose@townofbluffton.com>
Subject: Legal Spreadsheet - Flock Addition Request

Afternoon Felicia.

I couldn't find the Legal spreadsheet to add the following: **Flock cameras on existing Dominion poles in SCDOT ROW.** Please place this in the next legal meeting for discussion.

During the Flock meeting today, I was advised by Flock that they have previously received permissions from Dominion to place a Flock camera on their existing poles even though it is within the SCDOT ROW.

Town staff was told previously that SCDOT has paused all new Encroachment Permit approval for Flock cameras due to ongoing litigation so we can't place them in the SCDOT ROW.

In addition, the Dominion Pole Attachment Application has a disclosure stating: **The entity requesting attachment is responsible for all city, county, and/or state permits and easements, including any associated fees. In all situations, prior permission must be obtained from property owners and governmental entities for use of private property and public road rights-of-way. Dominion Energy South Carolina assumes no responsibility for securing such required permission, and the entity requesting attachment should assume that no such permission exists based solely on the presence of existing Dominion Energy facilities.**

Considering the above and before I put forth a lot of work into this process, I'd like a legal opinion to determine if we can use an existing Dominion pole in an SCDOT right of way for a Flock camera, with Dominion approving the pole attachment application.

Thanks so much for your help.

Constance S. Clarkson, CEPSCI
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